



ShabbaTTogether

JLI Sermon 2023

Parshat Mishpatim

Shabbat Shalom and welcome to ShabbaTTogether. It is an honor and privilege to join hundreds of Jewish communities worldwide in dedicating this Shabbat to embracing the infinite value of each individual—with an emphasis on individuals with disabilities and mental health conditions.

We are celebrating the third consecutive year of ShabbaTTogether. This event has proven its worth by providing communities and individuals alike with an annual reminder and awakening to the challenges that still lie ahead in terms of including and welcoming, fully embracing and supporting each person, *as they are*.

Trailblazing Sensitivity

By divine providence, this week's Torah portion, *Mishpatim*, is the *parshah* that mandated sensitivity in daily interactions. At first glance, it seems to offer a set of civil laws. But upon closer inspection, it guides *attitudes*. We are taught not to see others as different from ourselves, and to identify with the sensitivities of others, especially the vulnerable—"You must not mistreat a stranger...for you were strangers in the land of Egypt." "You shall not oppress a stranger, for you know the feelings of the stranger." "You should not mistreat a widow or orphan." And so on.¹

It includes,² for example, the laws of a bondsman, whose mandated manner of treatment led our Sages to declare, "Whoever acquires a Jewish bondsman has acquired a master for himself!"³ A master must care for the bondsman's wife and children, and send him home after a few years laden with lavish gifts to assist his transition into self-sufficiency. The Torah predicts that the bondsman might even *refuse* to return home—he is being treated so well and is so welcomed as part of his master's family.

¹ From today's perspective, some of the laws of Mishpatim may sound distasteful upon first read, in terms of equality, inclusion, and the like. However, from the perspectives of the ancient times (in fact, most of history), these laws were liberating and innovative. They introduce sensitivity to areas in which none at all existed, and *most importantly, they take into account that lasting social change takes time and persistence—a truth reflected in the modern struggles for equality and inclusion*. The treatment of the Hebrew bondsman, for example, was designed to lead the way to the complete abolishment of slavery. Much has been written on this topic. See Rabbi Tzvi Freeman:

https://www.chabad.org/parshah/article_cdo/aid/358698/jewish/Torah-Slavery-and-the-Jews.htm; Former UK Chief Rabbi Jonathan Sacks: https://www.chabad.org/parshah/article_cdo/aid/3575702/jewish/G-ds-Nudge.htm.

² Depending on the audience, this paragraph may be omitted if the presenter feels it may bring entanglement instead of enlightenment.

³ Kiddushin 22a.

These precepts, in ancient times, were radically innovative and counter-cultural calls for sensitivity and responsibility towards those who require additional support. It was these very ideas that set the wheels turning for humanity's gradual evolution of social sensitivity and social justice. The fruit of the trees planted in *Mishpatim* have only now, millennia later, finally given rise globally to the sensitivities of today's modern society, which still remain a work-in-progress.

The Torah is eternal, and its calls to advance are relentless. We cannot be satisfied with the innovations of the past or the gains of the present. It remains our duty⁴ to broaden our *own* perceptions in this area,⁵ and thereby lead the way towards the full support of people with disabilities, and *especially* those who live with mental health conditions. It is imperative to reduce and remove the stigma surrounding mental health conditions, to encourage informative and productive discussions on the topic within our communities, and to enlist the help of individuals with mental health conditions in accurately identifying how *they* wish to be supported.

New Normal

This year, everything is different. Is there *anything* left unchanged by the coronavirus pandemic? Populations on every continent experienced *first-hand* weeks and months of isolation, lockdown, interruptions to life and commerce, breakdowns in socialization, illness, hospitalization, and the trauma of sudden loss. Most of us faced⁶ restrictions in movement and personal communication—even our ability to smile was masked. Many of us still face agonizing uncertainties, and are forced to cope with significant levels of mental strain, anxiety, depression, PTSD, and other trauma and stress-related disorders.

Yes, Covid has been a tough teacher. But it must be a teacher nonetheless. The Baal Shem Tov insisted that *everything* we witness or experience is a lesson-in-waiting, placed before us on purpose by G-d's intimate providence.

What can Covid teach us in terms of supporting each other better?

For a start, the pandemic increased global awareness of the fragility and importance of mental and emotional wellbeing.

Mental health challenges are genuine disabilities. They are recognized as such by *The Americans with Disabilities Act*⁷—a law that protect individuals with mental or physical conditions that significantly impact their lives.

The necessity of a law to recognize the challenges of functioning with particular conditions highlights a common difficulty in relating to other people's struggles, and especially to the

⁴ As part of our mandate: "You shall be holy people to Me"—*Mishpatim*, 22:30.

⁵ It is well worth noting that the entire Torah portion is labeled *Mishpatim*, judgements, although it includes calls for the cultivation of personal sensitivities that are not available for the scrutiny of a mortal court. Clearly, it is the individuals who must judge their own feelings and reactions. *How can I better support those around me? Am I recognizing my own needs for care and support?* These are the kind of internal judgements we must face if we wish to improve ourselves, our communities, and our society.

⁶ Depending on local circumstance, this sentence may be read in the present tense.

⁷ The Americans with Disabilities Act ("ADA") of 1990 is a civil rights law that prohibits discrimination based on disability.

struggles of people with conditions that are externally *invisible*. Think of those suffering from allergies or debilitating migraines to the point that their lives are significantly impacted, but *without* those with whom they commonly interact being aware of their conditions. Many disabilities and a wide range of mental health conditions are similarly invisible to the onlooker.

Now, however, people *everywhere* suddenly find themselves grappling with mentally and emotionally surviving lockdowns, loss of income, interrupted studies, cooped up kids, and the like. As a result, mental health awareness has leaped into global focus. Not only are people reaching out for ways of coping, but they are reaching out in genuine concern to discover how *others* are managing emotionally—friends, spouses, relatives, the elderly, the youth—no one's mental and emotional health can be taken for granted under prolonged and trying circumstances.

This is our opportunity as a community to initiate a new normal. Can we make it part of regular living to *routinely* check up on each other, with *genuine* care and interest? Can we learn to accept and embrace individuals just as they are? Can we make it the norm to provide each individual in our personal and communal orbits with the support that she or he needs?

Beyond-the-Face Recognition

Covid introduced us to face masks. It forced us to see fellow humans without properly seeing them. But it also reminds us that individuals *without* masks are often wearing mental or emotional masks that allow us to see the person without noticing the significant struggles with which they live.

If we do not peer behind the mask, if we do not proactively reach out and inquire, we may never realize that our neighbor, our spouse, our youth and our elderly—or even ourselves—are trying to mask a significant struggle at the high price of struggling alone. It is time for a new normal: to inquire, and to draw closer together as a caring community.

Now is the time to ask ourselves: Is there an individual in our vicinity who lives *perpetually* in a state of internal isolation? Are there individuals who do not feel free to share their conditions or feelings, because not enough effort is invested in making them comfortable and understood?

During Covid, a large percentage of humanity experienced isolation, restricted freedoms, reduced mobility, limitations on activities, and the like. It should make us stop and consider the many individuals with disabilities who experience restrictions and isolation *on a constant basis*.

Now it the time to ask ourselves: Are we investing sufficient effort into providing accessibility to mobility-restricted members of our community and neighborhood? Is there a family that feels communally isolated because their children with disabilities are not made to feel welcome? Does our Shul or communal building offer a quiet space at its events? Is there a need for large print Siddurim and Chumashim? Is there a need to provide visual page clues during our services? Should we be providing food-allergy-friendly choices at our events? How can we heal the pandemic of undeveloped empathy that leaves so many individual with disabilities and mental health conditions without the support that they need?

It is time to find creative ways of providing that support, where and how it is needed most.

For, as *parshas Mishpatim* reminds us, each person is ultimately precious in the eye of the Creator.⁸ He created each of us with particular abilities and with particular disabilities, with specific features, circumstances, characters, and conditions. These factors are deliberately hand-designed by G-d, tailor-made to allow an individual to serve their unique mission to the world. Just as each ability exists to enhance, so does each disability and condition contribute something unique to an individual, to our people, and to the master plan of creation.

We all stood together in perfect unity at Sinai to receive the Torah, as we read in last week's *parshah*,⁹ and we must all stand together in unity while turning the Torah's vision into a reality.¹⁰ It is for that reason that directly following the rapturous, climatic and mystical revelation of Sinai, G-d lost no time in rushing us headlong into a series of laws governing our interactions with each other. The takeaway is clear: sanctity must translate into sensitivity. Spirituality is expressed in support. To reach up we must reach out. To embrace G-d we must unreservedly—and accurately—support each other.

Shabbat Shalom!

⁸ This theme is dramatically highlighted in the Torah's seemingly perplexing choice of a case with which to introduce its transmission of the civil laws of *Mishpatim*. It begins with the uncommon and unflattering case of a Jewish robber who, when caught and tried, could not make good on his thefts. He was sold by the court for a term of service to provide his victims with restitution. The Torah insists on compassionate provisions, and sets limits on both his term and his terms of service. Why begin with a Jew on the lower moral rungs of society? To demonstrate that our obligation to care for our fellow applies without discrimination or judgment on our part. To G-d, everyone is precious, and He urges us to share His sentiments. (*The Rebbe, Hitva'aduyot 5747*, vol. 2, pp. 481-482.)

⁹ Yitro—depicting the giving of the Torah and listing the Ten Commandments.

¹⁰ Every step towards greater social equality, inclusion, and support propels us closer to the world in which Moshiach will guide humanity to a global state of perfection in all areas.